



File No.: EXP202306871

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
FACTS

FIRST: On May 24, 2023, a complaint was filed with the Spanish Agency for Data Protection.

The reasons for the complaint are as follows:

The complainant states that they are a victim of a sextortion case: someone has published a video of them with sexual content on the website eporner, titled "Mr. A.A.A. (...)", and is demanding payment of a sum of money in exchange for its removal. They say that "my job and my family are in danger," and that they do not know what to do. They state that they have contacted the person responsible for the website (which they do not prove) and have not received a response. In the grouped complaint, they provide the URL to access the video. Along with the notification, the URL to access the video is attached.

SECOND: On May 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

Although the complainant states that they have contacted the website for the removal of the video mentioned in the complaint, there is no evidence of the exercise of deletion. There is also no record of whether they have reported the extortion to the police.

It is verified that the user who published the complained video has at least two other similar videos of other people published.

The entity owning the website <https://www.eporner.com> was informed on May 26, 2023, of the complaint filed with this Agency through the channel established on its website for content removal, and it was verified, on May 29, 2023, that the video mentioned in the complaint has been removed.

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Requested on two occasions from the entity representing the website "eporner.com", on May 26, 2023, via email and on July 14, 2023, via international certified mail, the IP address from which the complained video was uploaded or, failing that, the last 3 session IP addresses of the profile in which this video was published, the first request was ignored and the second was returned undeliverable. The request via postal services, as in others, was sent to the postal address indicated for complaints on the "DMCA / Copyright Claims" page.

The complaint was forwarded to the Attorney General's Office to determine whether the facts could constitute any criminal offense, leading to the initiation of file FCI No. ***FILE.1, which was sent to the Provincial Prosecutor's Office of Málaga for the appropriate purposes. Requested information from this Prosecutor's Office regarding the authorship of the facts, on November 15, 2023, a letter was received in this Agency from the Provincial Prosecutor's Office of Málaga stating that Pre-Processing Proceedings were initiated in the Prosecutor's Office of Melilla, and that they were currently in process in the Court of Instruction No. X of Melilla, registered under No. ***FILE.2.

Information was requested from the Area Prosecutor's Office of Melilla regarding their actions and whether they had been able to determine the identity behind the complained profile on the website "eporner.com", and on January 5, 2024, a letter was received in this Agency from this Prosecutor's Office informing that as of that date they had not been able to determine the owner of the referred

profile.

Once again requested from the Area Prosecutor's Office of Melilla, on May 25, 2024, regarding the status of the open proceedings No. ***FILE.2 in the Court of Instruction No. X of Melilla, on June 3, 2024, a letter was received in this Agency from that Prosecutor's Office informing "[...] that the aforementioned proceedings are currently in a state of Provisional Dismissal (Order dated January 19, 2024) because neither has the owner of the profile "****PROFILE.1" been determined nor has the affected party appeared before the Court despite being summoned on two occasions (11/02/2023 and 01/19/2024), which is communicated for the appropriate purposes."

And they attach the Order of Dismissal according to Article 641.2 of the LECR decreed by the Court of Instruction No. X of Melilla.

LEGAL GROUNDS

I

Competence

In accordance with the functions that Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) assigns to each control authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of Processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

III

Conditions for Consent

Regarding the conditions for consent, Article 7 of the GDPR provides:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language.

No part of the declaration which constitutes a breach of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.

4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

IV

Conclusion

In order to identify the person or persons who were processing the data of the complainant included in a video, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1. Before the adoption of the decision to initiate proceedings, and once the complaint has been accepted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate processing that involves mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the decision to accept the complaint for processing or from the date of the decision to initiate it when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

After conducting the investigations mentioned in the Facts, the following conclusions have been reached:

The video was removed upon request for its removal.

Information was requested from the responsible parties of the website where the video was published regarding the identity of the holder of the profile in which the video was published, and no written response has been received by this Agency.

The complaint was forwarded to the Attorney General's Office because the reported facts could constitute a criminal offense; this Office initiated file FCI No. ***FILE.1, ultimately leading to proceedings.

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previous no. ***FILE.2 in the Court of Instruction no. X of Melilla. Requested from the Area Prosecutor's Office of Melilla whether during these proceedings it had been possible to identify the holder of the claimed profile, this Prosecutor's Office informs this Agency that the aforementioned proceedings are in provisional dismissal, proceeding to archive the actions because neither has it been possible to determine the holder of the claimed profile nor has the injured party appeared before the Court despite having been summoned on two occasions.

The responsible party for the publication could not be identified.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images contained in the video, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO ARCHIVE the present actions.

SECOND: TO NOTIFY this resolution to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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